

A3 — What would put this bid out (working draft)

State after ADD-02 (issued 2026-10-22); Proposal Due Date (PDD) 2026-11-26 14:00 Riyadh time. Working state ADD-03 is PARTIAL and NOT used here. 16 explicit bid-out triggers + 1 below the score threshold. WD: Working Day; PBN: Preferred Bidder Notification; LCC: Local Content Certificate; PCOD: Project Commercial Operation Date; 🟩: human decision pending.

WORKING DRAFT — every register row and amendment op is PROPOSED: 207 rows. Image readings pending the owner's review: ADD-03-p4-r1. Explicit wording only. Shortened to fit one page.

Explicit — Rejection: 5

- [VOL-I-6.1-01](#)** Deliver the Proposal to the Authority by the Proposal Due Date and time, at the Appendix 3 address — “Thursday 26 November 2026” [VOL-I 6.6 p3; the requirement as amended: ADD-01 2.1 p1 (amending VOL-I 6.1) · confidence high] **INFEASIBLE on PROVISIONAL assumed lead times: Local Content Certificate 30 WD, not stated in the pack; float -12 WD; I-LCC-ISSUER · amended by addendum**
- [VOL-I-8.5-01](#)** Evidence at least two (2) reference sewage treatment plants of at least 80,000 m3/day, each having achieved commercial operation within the ten (10) years preceding the Proposal Due Date — window starts 2016-11-27 (2016-11-26 if boundary inclusive): 10 years before the PDD 2026-11-26 [VOL-I 8.5#fn12 p4 · confidence high] **see ADD-01/2.2, ADD-01/Q5**
- [VOL-I-1.4-01](#)** Only a Bidder prequalified under RFQ NUPA/ISTP/2025/031 and named in Appendix 1 may submit a Proposal [VOL-I 1.4 p2 · confidence high]
- [VOL-I-8.1-01](#)** Bid as the prequalified entity or consortium; no change to composition, shareholding or lead member without the Authority's prior written consent [VOL-I 8.1 p4 · confidence high]
- [VOL-I-8.2-01](#)** No firm or affiliate of a member may participate in more than one Proposal [VOL-I 8.2 p4 · confidence high]

Explicit — Disqualification: 2

- [VOL-I-5.4-01](#)** Be represented at the Pre-Bid Conference on 30 September 2026 — held 2026-09-30 (before the status date): compliance is a bidder fact to confirm (I-BIDDER-FACTS); ADD-01 3.1 window closed 2026-10-14 (2026-10-15 if event day excluded) [VOL-I 5.4 p3 · confidence high]
- [VOL-I-4.2-01](#)** Blackout: no contact with the Authority's board, staff, consultants or advisors about the Project other than through the Portal, until the PBN [VOL-I 4.2 p3 · confidence high]

Explicit — Non-responsive: 8

- [VOL-I-8.6-01](#)** Local Content Certificate from the competent authority showing the minimum construction-phase local content ratio — “not less than thirty-five per cent (35%) for the construction phase” [ADD-02 9.1 p3 (reinstating VOL-I 8.6) · confidence high] **INFEASIBLE on PROVISIONAL assumed lead times: Local Content Certificate 30 WD, not stated in the pack; float -12 WD; I-LCC-ISSUER · see ADD-01/4.2 · reinstated by addendum**
- [VOL-I-9.3-01](#)** Form 4-A (as reissued by ADD-01 App A) signed by a person holding a notarised Power of Attorney from the lead member; an unsigned or improperly executed Form 4-A renders the Proposal non-responsive [VOL-I 9.3 p5 · confidence high]
- [VOL-I-9.4-01](#)** Form 4-C completed in Arabic, signed and stamped by an authorised signatory of each member [VOL-I 9.4 p5 · confidence high] — also stated in **[VOL-IV-F4C-N1](#)** (VOL-IV F4-C/image/note p6, confidence medium), VOL-IV F4-C/para1 p5; ADD-02 Q9: English with an Arabic translation is not acceptable
- [ADD-02-7.2-01](#)** Complete and submit the new Form 4-G (cybersecurity undertaking) with Envelope A [ADD-02 7.2 p3 · confidence high] **new by addendum**
- [VOL-I-6.2-02](#)** No price, rate or other commercial information anywhere in Envelope A [VOL-I 6.2 p3 · confidence medium (see I-VOL-I-ENV-A-PRICES)]
- [VOL-I-9.6-01](#)** Form 4-E lists every deviation, qualification or reservation to Volume V; never 'no deviations' with a qualification elsewhere [VOL-I 9.6 p5 · confidence high]
- [VOL-I-10.5-01](#)** No conditional price, alternative price, or price subject to adjustment other than as provided in Volume V [VOL-I 10.5 p5 · confidence high]
- [VOL-I-11.5-01](#)** A response to an Authority clarification request must not change the Availability Payment quoted [VOL-I 11.5 p5 · confidence high]

Explicit — Exclusion (Arabic text only; not equated with the other categories; I-F4C-EXCLUSION): 1

- [VOL-IV-F4C-04](#)** Form 4-C declaration 4 (Arabic only): all information in the Proposal is true and complete [VOL-IV F4-C/image/decl4 p6 · confidence medium]

Explicit — Envelope B returned unopened (technical score below the threshold): 1

- [VOL-I-11.3-01](#)** Technical score of at least 70 out of 100 to proceed to commercial evaluation [VOL-I 11.3 p5 · confidence high]

General gate — mandatory, pass or fail; no bid-out consequence stated (VOL-I 11.1(i)): 36

Mandatory; no bid-out consequence stated. VOL-I 11.1(i) is a general pass/fail check; the pack does not say which clause is checked at which stage (8 are Envelope B items, VOL-I 11.3). No clause-specific label or curability is implied (I-NO-CONSEQUENCE). Rows: a3_detail.html.

Unresolved matters, grouped — 29 open issues, 23 clarification questions drafted (not sent; A4)

53 open issues: 29 listed, 17 folded into the issue they restate (+n), 5 on a3_detail.html only, I-ADD03-TRANSFER-FLOW, I-NO-CONSEQUENCE in the gate note. Line: id, reason (owner); † = decide before submission (13 unresolved, 6 not supplied; 15 marked, the rest folded). Unknown answers stay unknown. Condensed to fit one page: each issue's reason is on a3_detail.html.

Forms and declarations (4): † **[I-F4A-FIELDS](#)** (Legal) +2; † **[I-F4C-EXCLUSION](#)** (Legal); **[I-F4G-LETTERING](#)** (Bid manager) +1; † **[I-F4G-NO](#)** (Technical) questions drafted: 3

Envelopes, copies and files (5): † **[I-VOL-I-ENV-B](#)** (Bid manager); † **[I-VOL-I-ENV-A-PRICES](#)** (Bid manager); **[I-VOL-I-COPIES](#)** (Bid manager); **[I-VOL-I-FILE-NAMES](#)** (Bid manager); **[I-VOL-I-APPENDICES](#)** (Technical lead) questions drafted: 5

Technical, permit and design basis (4): **[I-READING-T24](#)** (Owner); **[I-FLOWS](#)** (Technical) +1; † **[I-ADD03-T13-ARABIC-ENGLISH](#)** (Legal counsel); **[I-VOL-II-T24-TENSIONS](#)** (Process engineer) questions drafted: 4

Contract, bond and concession (4): † **[I-CONCESSION](#)** (Legal) +1; † **[I-ADD03-SUMMARY-VS-OPERATIVE](#)** (Legal counsel); **[I-VOL-I-BOND-LONGSTOP](#)** (Commercial lead); **[I-VOL-V-PERSISTENT-BREACH](#)** (Legal counsel) questions drafted: 5

Evaluation and scoring (1): **[I-VOL-IV-SCALE](#)** (Bid manager) +1 questions drafted: 1

Referenced but not supplied (impact noted; not a prerequisite for completion) (4): † **[I-PERMIT](#)** (Technical) +1; † **[I-VOL-III](#)** (Technical); **[I-VOL-II-MISSING](#)** (Technical lead) +1; † **[I-VOL-V-MISSING](#)** (Legal counsel) +2 questions drafted: 3

Programme, evidence and bidder facts (4): † **[I-LCC-ISSUER](#)** (Commercial) +7; **[I-BIDDER-FACTS](#)** (Bid manager); † **[I-AUTO-COUNTING](#)** (Bid manager); **[I-A5-attendance-notice](#)** (Bid management) questions drafted: 1

Addenda and register status (3): **[I-ADD-03-COVER-01](#)** (Bid manager); † **[I-PARTIAL-ADD-03](#)** (Bid manager); † **[I-AUTO-UNTRACED-ADD-03](#)** (Bid manager)